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What happens if the exchange defaults or is unresponsive?

Updated 1 year ago

Fireblocks' agreement with the exchange allows it to lift the programmatic lock on (or "unlock") the CVA under any of the following circumstances (unlocking events).

Unlocking Event 1

Description

The exchange has not responded to at least two consecutive requests from you for settlement and/or to un-delegate CVA funds. At least two hours have lapsed between each request.

Clarification

Only requests that have either timed-out or received an automatically-generated error message will be considered.

Unlocking Event 2

Description

You have received at least two consecutive abnormal requests and/or responses.

Clarification

Examples of abnormal requests and/or responses (non-exhaustive):

- Your request to withdraw CVA funds has been rejected by the exchange despite having sufficient balance and no outstanding settlement requests.
- You have received settlement requests that do not correspond to your trading activity on the exchange platform via the Fireblocks Off Exchange solution.

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Unlocking Event 3

Description

A bankruptcy event has occurred in relation to the exchange and the exchange has not responded to at least two consecutive requests from you for settlement and/or to un-delegate CVA fund. At least 2 hours have lapsed between each request.

Clarification

Definition of a bankruptcy event:

- The exchange is declared insolvent or bankrupt by a court of competent jurisdiction; or
- A voluntary or involuntary petition of bankruptcy is filed in any court of competent jurisdiction against the exchange; or
- The exchange files for reorganization, liquidation or receivership proceedings.

You are required to provide documentary evidence of the alleged bankruptcy event.

Examples of such evidence includes (non-exhaustive):

- A copy of the Court filing.
- Public announcement concerning the exchange's bankruptcy or liquidation.

In relation to unanswered requests, only requests that have either timed-out or received an automatically-generated error message will be considered.

Unlocking Event 4

Description

You have obtained an order (or the equivalent) of court, issued by a court of competent jurisdiction, for the lifting of restrictions on or relating to the CVA.

Clarification

You are required to provide a copy of the court order.

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- You will need to provide all information required in the task form, as well as all applicable documentary evidence supporting the unlocking event. Fireblocks may require you to provide additional information or documentation in order to verify the unlocking request.
- Fireblocks will only unlock the CVA for reasons attributable to the exchange.
- Fireblocks will verify each unlocking request in accordance with our predefined internal policy, which clearly analyzes each given situation and whether the prerequisites for unlocking are met.
- **SLAs:**
 - Initial Response: 48 hours.
 - Verification of unlocking request and decision: One week (after you submit all relevant information).
 - Unlocking of CVA: 2-3 working days.

Note:

Since each unlocking request is unique in nature, some requests might take Fireblocks longer than the above-mentioned SLAs to review and process.

For exchanges

- During the course of such verification, Fireblocks may reach out to the exchange via email, Slack, or any other communication channel between Fireblocks and the exchange. Such attempts may be for clarification or to request that the exchange resolve any technical issue. The following SLAs apply to all contact attempts from Fireblocks:
 - The exchange shall respond to all messages from Fireblocks without delay, and in no event shall the exchange take more than 2 hours to respond to any message from Fireblocks.
 - The exchange shall fix all technical issues within 12 hours.
- Failures to comply with these SLAs may result in the unlocking of the CVA.
- The exchange shall promptly notify Fireblocks in writing in the event of any change to the exchange's contact details.

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